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Democratic Republic of the Congo (DRC):

Massive displacement and deteriorating humanitarian conditions

Fighting between militia groups and Congolese armed forces supported by the UN, as well as attacks and violence against civilians, caused the displacement of some 800,000 people in the east of the Democratic Republic of the Congo (DRC) during the first six months of 2009. As a result of these and earlier episodes, an estimated two million people were displaced in North and South Kivu and Orientale Province as of the end of July 2009. Many internally displaced people (IDPs) have not received assistance from international agencies, whose access has been blocked by the insecurity. Tens of thousands have sought shelter in camps and spontaneous settlements, as the resident population's capacity to host IDPs has declined.

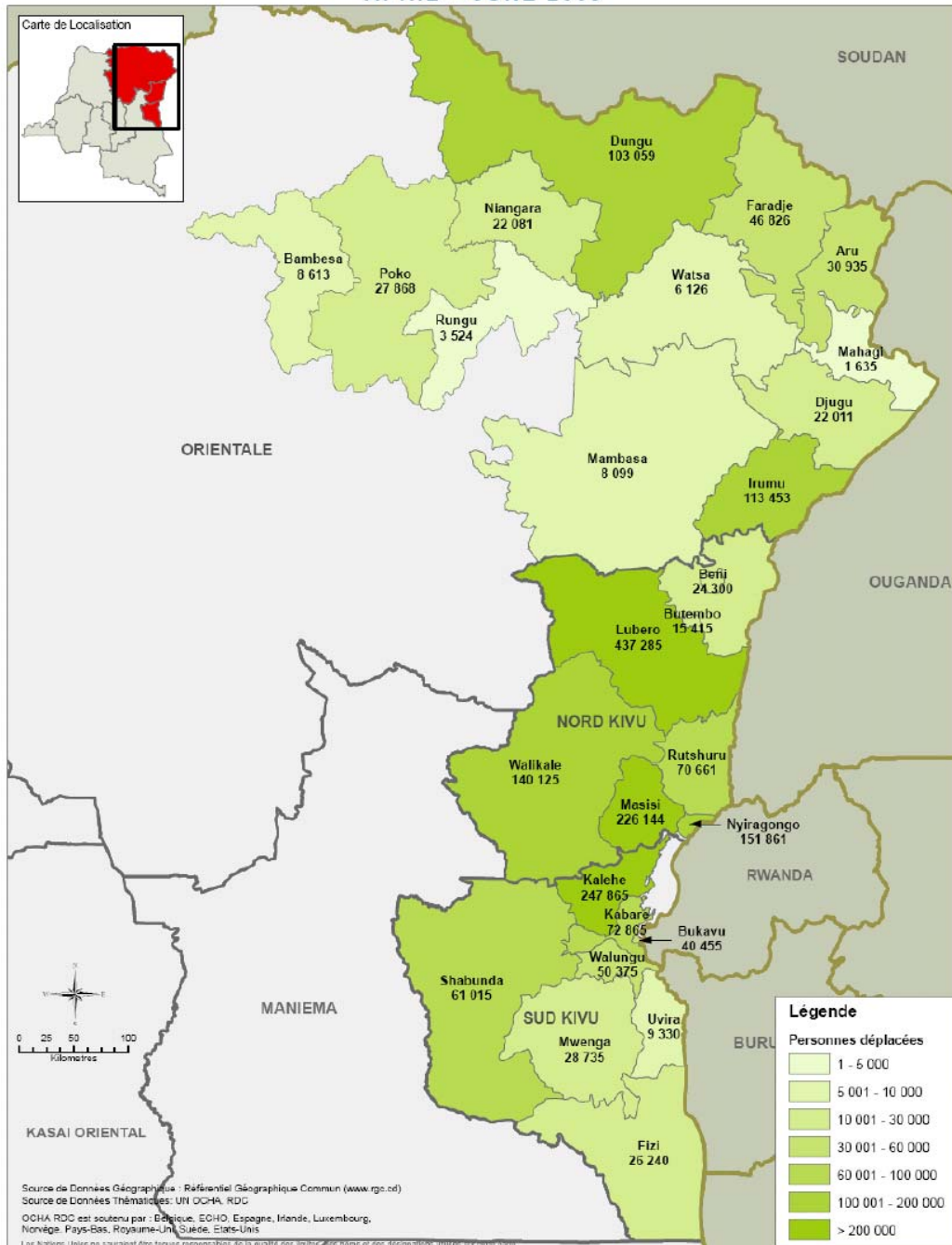
Since the mid-1990s, millions of Congolese have fled their homes to escape fighting between rebel groups and the government, in a complex conflict which has also involved neighbouring states. The International Rescue Committee estimated in January 2008 that some 5.4 million had died as a result of the conflict. Displacement peaked in 2003, with an estimated 3.4 million people forced from their homes, most of them in eastern DRC.

Map of Democratic Republic of the Congo (DRC)

Population Movements in Eastern Democratic Republic of Congo

OCHA United Nations Office
for the Coordination of
Humanitarian Affairs
Humanitarian Briefing

OCHA DRC POPULATION MOVEMENTS IN EASTERN DR CONGO APRIL – JUNE 2009



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Source: United Nations Office for Coordination of Humanitarian Affairs (OCHA)
More maps are available on <http://www.internal-displacement.org>

Background to displacement and recent developments

1996-2008: War and partial recovery

Between 1996 and 1997, and again between 1998 and 2003, DRC suffered two major wars, in which millions died and millions more were forcibly displaced. Civilians bore the brunt of the violence as a number of rebel groups, more or less closely linked to neighbouring states, competed to control large areas of eastern DRC (for more information, see HD, 3 July 2009). Displacement peaked in 2003, with an estimated 3.4 million people forced from their homes, mostly in the east of the country. Many of them returned home following the withdrawal of foreign armies and the establishment of a power-sharing transitional government in mid-2003.

In 2006, millions of voters elected Joseph Kabila as president in the country's first multi-candidate vote in over 45 years. Most IDPs could not vote due to insecurity, or because they had lost electoral cards or had them seized by armed groups (OCHA, 15 August 2006; NRC, April 2006).

Despite these political milestones, violence and displacement continued, as the government continued to fight militias in a bid to re-establish its authority throughout the east. In 2004 General Laurent Nkunda left the Congolese army and created the National Congress for the Defence of the People (*Congrès national pour la défense du peuple*, or CNDP) with the stated objective of protecting the country's Tutsi minority (concentrated in North Kivu) against the Democratic Liberation Forces of Rwanda (*Forces démocratiques pour la libération du*

Rwanda, or FDLR), which included some perpetrators of the 1994 genocide in Rwanda.

In January 2008, the government signed a ceasefire agreement in Goma with 22 armed groups, including the CNDP and Mai Mai local militia groups operating in North and South Kivu, but the agreement was not respected in practice. The governments of DRC and Rwanda made joint commitments regarding the disarmament of the FDLR in a separate agreement signed in Nairobi in November 2007, but the rebel group continued its activities in North and South Kivu.

International and national forces and the protection of civilians

The 17,000 peacekeepers of the UN Mission in the Democratic Republic of the Congo (MONUC) have played a crucial role in providing security in the country, but the force has been unable to prevent continuing violence. It is authorised to use all necessary means to protect civilians under imminent threat of physical violence (Chapter VII of the UN Charter), but it was unable to stop a surge of violence against civilians in the second half of 2008 which caused massive displacement. The UN Security Council (UNSC) subsequently decided to deploy an additional 3,000 troops and police officers (UNSC, 22 December 2008), but these forces had not arrived as of early August 2009. Since early 2009, 15 MONUC joint protection teams have gathered information on areas where civilians might be at risk of attack, but Human Rights Watch has reported that their recommendations to UN peacekeepers and Congolese forces have rarely been followed (HRW, 2 July 2009). MONUC also has a mandate to monitor

compliance with the arms embargo imposed by the UNSC on armed groups operating in eastern DRC. Despite the embargo, weapons continue to be channelled to various armed groups in DRC. Following a May 2009 visit to DRC, the UNSC noted that MONUC's competing roles of protecting civilians and supporting army-led operations had inevitable humanitarian consequences (UNSC, 11 June 2009).

The army has failed to protect civilians. Ill-equipped, unpaid and unfed troops have often been in no position to defend themselves or civilians under their care against armed groups (UNSC, 30 June 2009). Since 2003, the government has sought to integrate into the army troops from various militias, as well as to disarm and repatriate members of armed groups such as the FDLR, but the integration process has been marred by corruption and by conflicts between soldiers which have often reflected local ethnic divisions, particularly in the provinces of North Kivu and South Kivu.

Furthermore, members of the army have frequently contributed to the insecurity of civilians; it includes in its ranks commanders and soldiers with horrific human rights records, including several war criminals (Enough Project, 16 July 2009). Members of the army as well as of militia groups are reportedly involved in the illegal exploitation of natural resources including gold, coltan and diamonds, and the smuggling of goods and weapons, contributing to further human rights violations, insecurity and displacement (GW, 20 July 2009). To counter these activities, UNSC sought through Resolution 1807 of 2008 to freeze the assets and ban the travel of individuals causing

forced displacement and committing serious violations of international law in DRC (UNSC, 18 May 2009).

2008: Conflict between the army and the CNDP in North and South Kivu

Violence and displacement surged in the second half of 2008 when large-scale fighting broke out between the army and the CNDP. CNDP troops advanced towards the North Kivu provincial capital Goma, while the army scattered, with many soldiers then going on a looting spree. At the end of 2008, a flurry of UN-led diplomatic activity led to a deal between the Congolese and Rwandan governments which in turn led to the arrest of the head of CNDP by Rwanda, to a joint operation against the FDLR in early 2009 and to the signing of an agreement by the DRC government and the CNDP in March 2009, according to which the CNDP would integrate troops into the national army and police, and form a political party. Although in practice the CNDP has maintained a parallel chain of command (Enough Project, 16 July 2009), the rapprochement between the Congolese and Rwandan leaderships constituted a dramatic political change.

2009: Conflict between the army and the FDLR, LRA and others

Fighting has continued through 2009 on a number of fronts. After the end of the joint DRC-Rwandan operation, the Congolese army launched in North and South Kivu an operation against the FDLR code-named Kimia II, with logistical support from MONUC. Some Mai Mai militia groups have also attacked government troops, particularly integrated units including ex-CNDP members. The Congolese army has gained control of strategic locations previously held by the

FDLR, leading to the disarmament, demobilisation, repatriation and resettlement of over 1,100 FDLR combatants in 2009. However, some areas were later retaken by the FDLR and the operations also led to population displacements and human rights abuses by the FDLR, as well as rights violations by army troops (UNSC, 30 June 2009). Villagers from South Kivu reported that since the beginning of operations against the FDLR in the area, both the regular army and the rebels had forced them from their homes, including in villages where they had previously coexisted with the FDLR (AFP, 22 April 2009). The International Crisis Group called for the suspension of operations in North and South Kivu in the absence of a global strategy to disarm the FDLR (ICG, 9 July 2009). Several humanitarian and human rights NGOs also expressed serious concerns about these operations (IRIN, 22 June 2009).

Since mid-2008, the Ugandan Lord's Resistance Army (LRA) rebel group has led reprisal attacks against communities in DRC, killing, abducting and looting from civilians, and leading to high levels of displacement. The armies of Uganda, DRC and Southern Sudan have launched operations in Upper Uele against the LRA. Following an assault by Ugandan troops, the LRA killed more than 865 civilians at the end of December 2008 and early January 2009, often hacking their victims to death with machetes and axes or crushing their skulls with heavy sticks (HRW, 16 February 2009).

Increasing displacement

The UN estimated that there were some two million IDPs in DRC as of July 2009, 1.5 million of them in North and

South Kivu. Close to 800,000 were estimated to have been newly displaced in the first six months of 2009 (OCHA, 31 July 2009). Most IDPs in eastern DRC have been displaced several times and some 75 per cent have taken refuge with host communities or in hiding in forests. As communities have become increasingly unable to cope with the influx of people, several hundred thousand IDPs have built makeshift settlements, found refuge in dilapidated buildings or in camps managed by international NGOs under the coordination of UNHCR. Spontaneous sites are generally unsafe and badly structured, and are usually located in insecure areas where displaced women and children are extremely vulnerable to abuses including rape and forced recruitment. They are also generally built on private land, which can cause disputes with the land owner.

Figures for displacement and return by region

All figures are estimates of varying precision, as most IDPs cannot be registered, and many are constantly on the move.

North Kivu: There were close to 1.1 million IDPs in the province as of July 2009 (OCHA, 31 July 2009). Close to 400,000 people were newly displaced from January to June 2009, particularly in South Lubero, Walikale and parts of Masisi. Some 80,000 were estimated to have been displaced in June 2009 alone (IRIN, 11 July 2009; OCHA, 8 July 2009). Between December 2006 and October 2008, attacks by militia groups and intense combat between the army and the CNDP displaced more than 750,000 people in the province, including 100,000 in a single week in October 2008 (OCHA, 16 July 2008; UNICEF, 3 November 2008).

Between April and June 2009, 300,000 IDPs were able to return to their homes in areas formerly occupied by the CNDP (UNHCR/UNOPS, 10 July 2009). However, in many IDP camps, food rations were diminished to encourage people to return to their homes, although these areas remained insecure (UNICEF, 13 April 2009).

South Kivu: The UN estimated that there were at least 536,000 IDPs in South Kivu at the end of July 2009, but this number is likely to rise further due to the ongoing military operations in the Province (OCHA, 31 July 2009). Close to 125,000 people were displaced between February and April (OCHA, 17 May 2009), and over 56,000 in July (IRIN, 31 July 2009; OCHA, 31 July 2009). The territories hardest hit by the deteriorating security were Shabunda, Kalehe, Mwenga and Walungu (ICRC, 8 July 2009).

Upper Uele and Lower Uele: In the first half of July, the LRA reportedly carried out 33 attacks in the districts of Upper and Lower Uele, killing 26 civilians and abducting 144, among whom six children (IRIN, 17 July 2009). Some 17,000 people were displaced by LRA attacks in June, and there were an estimated 218,000 IDPs in Upper and Lower Uele as of July 2009 (IRIN, 11 July 2009; OCHA, 31 July 2009).

Ituri: In April 2009, more than 30,000 people were driven from their homes due to renewed fighting between rival militia groups (UNHCR, 7 April 2009). There were some 176,000 IDPs in Ituri as of July 2009. However, the security situation has generally improved in the last years following the demobilisation of most armed groups, allowing the return

of two million IDPs from August 2008 to May 2009 (OCHA, 31 July 2009). Many IDPs are trying to recover land where displaced people or others had settled during their absence; the process is causing strong tensions throughout Ituri (ICG, 13 May 2008). An Ituri land commission created in July 2008 reportedly only solved two conflicts by mediation (Radio Okapi, 2 August 2009).

Main protection issues

Physical security

The killing and rape of civilians has continued at a horrifying rate in eastern DRC in 2009 according to numerous reports, and the protection of IDPs and other civilians in eastern DRC remains an urgent concern. Members of the army as well as armed militias have continued to commit human rights violations and abuses including killing, rape, sexual exploitation, abduction, forcible conscription of children, looting, plundering of crops, illegal taxation and general harassment of civilians.

Despite all initiatives undertaken to counter sexual violence, rape continues to be widespread. According to an Oxfam survey, sexual violence has increased dramatically since the military offensives against the FDLR began in January 2009 (Oxfam, 14 July 2009). The UN also reported an alarming increase in sexual violence in South Kivu in 2009, committed not only by FDLR militia but also by government soldiers (UNSC, 30 June 2009; IRIN, 3 June 2009). In addition to reported cases, many survivors of sexual violence are ashamed or unable to come forward to seek help. Thousands of women have also been abducted and kept as slaves in the forces' camps to provide

sexual, domestic and agricultural services.

Government soldiers and rebel fighters have committed widespread sexual violence to attack the fundamental values of the community, to scare the civilian population into submission, to punish them for allegedly supporting enemy forces or to provide gratification for the soldiers or militia members. The adoption of two laws on sexual violence in 2006 has made no difference, due to the weakness of the judicial system and the lack of protection for rape victims. As of July 2009, no senior military figure had been prosecuted for sexual crimes (HRW, 16 July 2009). Over the past years, several international peacekeepers stationed in eastern DRC have also been investigated for engaging in sexual exploitation and abuse (UNSG, 12 August 2008).

Before the latest surge in fighting, at least 3,000 displaced and other children were estimated to be in armed forces and groups in eastern DRC (MONUC, 24 July 2008). Forced recruitment of children continued in eastern DRC in 2009 (UNICEF, 22 June 2009). UNICEF reported that displaced children in North Kivu, particularly those separated from their families, were at particular risk of being recruited by militia, but also of being raped and exploited (UNICEF, 14 November 2008). Despite the extent of serious human rights violations, the UN Human Rights Council decided in March 2008 not to renew the mandate of the Independent Expert on the situation of human rights in DRC, established in 2004.

Access to basic necessities

Some 5.4 million people were estimated to have died in DRC from August 1998

to April 2007 due to the impact of the conflict, the majority of them of infectious diseases, malnutrition, and neonatal and pregnancy-related conditions (IRC, 11 January 2008).

The humanitarian situation of IDPs and other vulnerable people in eastern DRC has deteriorated over the past months in the context of military operations and reprisals and continuing abuses against the population. The vast majority of IDPs and returnees lack access to basic infrastructure such as health centres, schools and roads, and to clean water, food, seeds, tools, clothes and building materials. Many IDPs missed planting and harvesting seasons in 2009 due to their displacement and also to the looting of crops from their fields (IRIN, 1 July 2009). With health care structures collapsing, displaced people are particularly vulnerable to infectious diseases such as cholera, measles, bubonic plague, due to their precarious living conditions and lack of access to clean drinking water. They are also exposed to HIV infection, as they usually lack the means to protect themselves and do not have information about its transmission.

National and international responses

Measures by the central government and provincial authorities have so far fallen very short of meeting the needs of IDPs, despite the obligations of the government to protect its displaced populations. Instead, local authorities and networks have been at the forefront of care for IDPs. The government has ratified the Pact on Security, Stability and Development in Africa's Great Lakes region, which came into force in June 2008, and in doing so

has committed to incorporate the UN's Guiding Principles on Internal Displacement into national law. During his first visit to DRC in February 2008, the Representative of the UNSG on the human rights of IDPs called upon the government to speedily enact a legislative framework for the protection of IDPs, and urged the international community to support this endeavour (HRC, 16 May 2008).

Humanitarian agencies have struggled to respond to the emergency needs of IDPs and other vulnerable people in a context of ongoing military operations and increased attacks against humanitarian workers (OCHA, 8 July 2009). In North and South Kivu, tens of thousands of IDPs were in desperate need of protection and assistance in mid-2009, as insecurity prevented humanitarian agencies reaching them. In most of North and South Kivu, UN aid workers have had to travel with a military escort (OCHA, 30 June 2009; IRIN, 11 July 2009). Distribution of food and non-food items was suspended in areas of South Kivu in April and May 2009 to avoid looting from beneficiaries by armed groups (UNSC, 30 June 2009). Other factors hampering the delivery of support to displaced people and returnees include the sheer size of the country, the absence of roads and the high degree of geographical dispersal of IDPs.

Since 2006, UN agencies and international NGOs have worked to make relief efforts more systematic and predictable by means of a response coordinated by "cluster". Of particular relevance to IDPs are the Protection Cluster led by UNHCR and the Reintegration and Community Recovery Cluster led by UNHCR and

UNDP. The Protection Cluster has developed together with MONUC a handbook for peacekeepers, detailing measures for the protection of IDPs and other civilians (Protection Cluster/MONUC, 2009).

UN agencies, national and international NGOs and the International Committee of the Red Cross (ICRC) are providing emergency assistance to IDPs, as well as transport assistance and return packages to returning IDPs. A rapid response mechanism managed by UNICEF and OCHA supports IDPs and communities hosting them, by providing emergency assistance for three months. UNICEF further coordinates assistance to returning communities through the Programme of Expanded Assistance to Returns (PEAR), together with NGO partners. UNDP announced a joint UN social and economic recovery programme over 18 months intended to benefit 125,000 IDPs in South Kivu (UNDP, 14 July 2009). In February 2009 UNOPS and partners set up a data centre for IDP populations both in camps and in host families in North and South Kivu, in order to learn about their displacement history, family composition and vulnerabilities and so help to better target assistance (UNHCR/UNOPS, 10 July 2009). WFP is coordinating food distribution to one million vulnerable people in eastern DRC, many of them IDPs (WFP, 12 June 2009).

In order to strengthen the response to the crisis in DRC, the humanitarian community has requested \$831 million through its 2009 Humanitarian Action Plan (HAP) (OCHA, 24 November 2008). One of the main objectives of the HAP is to protect and assist IDPs and host families. Funding sources for this plan include a multi-donor mechanism called the

Pooled Fund, the Central Emergency Response Fund (CERF) through its grants for under-funded emergencies, and also bilateral donors. As of mid-July 2009, the HAP was 53 per cent funded (OCHA, 13 July 2009). In addition, as of early August 2009, a plan was being developed for the return of refugees and IDPs based on the UN Security and Stabilisation Support Strategy (UNSSSS).

Note: This is a summary of the IDMC's Internal Displacement profile. The full profile is available online [here](#).

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About the Internal Displacement Monitoring Centre

The Internal Displacement Monitoring Centre, established in 1998 by the Norwegian Refugee Council, is the leading international body monitoring conflict-induced internal displacement worldwide.

Through its work, the Centre contributes to improving national and international capacities to protect and assist the millions of people around the globe who have been displaced within their own country as a result of conflicts or human rights violations.

At the request of the United Nations, the Geneva-based Centre runs an online database providing comprehensive information and analysis on internal displacement in some 50 countries.

Based on its monitoring and data collection activities, the Centre advocates for durable solutions to the plight of the internally displaced in line with international standards.

The Internal Displacement Monitoring Centre also carries out training activities to enhance the capacity of local actors to respond to the needs of internally displaced people. In its work, the Centre cooperates with and provides support to local and national civil society initiatives.

For more information, visit the Internal Displacement Monitoring Centre website and the database at www.internal-displacement.org.

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